

**IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION**

DAINA HALL AND KEAUNDRE
MCCLENDON

Plaintiff

vs.

THE UNITED STATES OF AMERICA,

Defendants

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CIVIL ACTION NO. 4:26-cv-5517

PLAINTIFF'S ORIGINAL COMPLAINT

COME NOW Plaintiffs Dainna Hall and Keaundre McClendon and complain of Defendant, the United States of America and for cause of action respectfully shows as follows:

I.

Jurisdiction and Venue

1. This Court has jurisdiction because this action is based upon the Federal Tort Claims Act, 28 U.S.C. § 13469(b); additionally, it has been more than six (6) months since a valid claim has been made, and Defendant has not provided Plaintiff with a final decision.

2. Venue is proper because the Plaintiffs reside in the above judicial district and the acts and/or omissions herein complained of occurred in said judicial district.

II.

Parties

3. Plaintiff Dainna Hall is an American citizen. Plaintiff currently resides in Humble, Texas and at all times material has been a resident citizen of the state of Texas.

4. Plaintiff Keaundre McClendon is an American citizen. Plaintiff currently resides in Humble, Texas and at all times material has been a resident citizen of the state of Texas.

5. Defendant, THE UNITED STATES OF AMERICA (“United States” or “Defendant”) is a governmental organization and was, at all times material hereto, the owner and operator of the motor vehicle which caused the collision on which this suit is based. Defendant may be served by delivering a copy of the Summons and the Complaint to the following persons:

Civil Process Clerk
United States Attorney’s Office
1000 Louisiana St., Suite 2300
Houston, Texas 77002
Email: USATXS.CivilNotice@usdoj.gov

Assistant Attorney General for Administration
Justice Management Division
U.S. Department of Justice
950 Pennsylvania Avenue, NW
Washington, DC 20530

III.

Nature of Action

6. On December 14, 2024, Kenswick Drive and Huntermoor Circle were public roadways in the City of Kenswick, Harris County, Texas. On said date and at the time of the occurrence hereinafter complained of, Defendant, UNITED STATES OF AMERICA, owned a motor vehicle which was being operated on Kenswick Drive and Huntermoor Circle by an employee of the UNITED STATES OF AMERICA, acting within the scope of her employment with the United States Postal Service. At said time and place, Dainna Hall and

Keaundre McClendon, the Plaintiffs, were operating a vehicle on Huntermoor Circle. At all times material Plaintiffs were in the exercise of ordinary care for their own safety. At said time and place the Defendant, by its employee, carelessly and negligently drove and operated its motor vehicle and as a direct and proximate result collided with Plaintiff's vehicle, thereby causing Plaintiff severe personal injuries.

7. The United States has waived sovereign immunity pursuant to the Federal Torts Claims Act 28 U.S.C. § 13469(b);.

IV.

Count I—Negligence

8. Defendant, by its employee, had a duty to exercise the degree of care that a reasonably prudent person driving an automobile would use to avoid harm to others under circumstances similar to those described herein. Plaintiffs sustained injuries because of the negligence of Defendant, by and through its employee, when Defendant and/or its employee:

- Failed to drive in a safe manner;
- Failed to remain attentive while driving;
- Failed to avoid the collision;
- Failed to keep the vehicle under proper control;
- Failed to keep a proper lookout;
- Failed to operate the vehicle safely;
- Failed to control speed;
- Failed to drive attentively;
- Failed to remain aware of surroundings;
- Failed to yield the right-of-way; and

- Other acts so deemed negligent.

9. Each of the foregoing negligent acts and omissions, singularly or collectively, constituted negligence which proximately caused the occurrence made the basis of this cause of action and the resulting injuries and damages suffered by Plaintiffs.

V.

Damages

10. As a result of these occurrences, Plaintiffs sustained severe injuries to their bodies, which resulted in physical pain, mental anguish, and other medical problems. Plaintiffs will show that they have sustained severe pain, physical impairment, discomfort, mental anguish, disfigurement, and distress, and that in all reasonable probability, such physical pain, physical impairment, disfigurement, and mental anguish will continue indefinitely. Plaintiffs have suffered a loss of earnings in the past, as well as a loss of future earning capacity. Plaintiffs incurred and will continue to incur pharmaceutical and medical expenses in the past and the future in connection with his injuries.

11. Plaintiffs sues the United States for the full amount of their damages.

VI.

Conditions Precedent

12. Plaintiffs plead that all conditions precedent necessary to bring this suit have been performed or have occurred.

Prayer

Plaintiffs pray that this citation issue and be served upon Defendant requiring that Defendant appear and answer, and that upon final hearing, Plaintiffs have judgment against

Defendant in a total sum in excess of the minimum jurisdictional limits of this Court, plus pre-judgment and post-judgment interests, attorneys' fees, punitive damages, all costs of Court, and all such other relief, to which he may show himself justly entitled. Plaintiffs request Defendant be served pursuant to F.R.C.P. 4(d)(4) and that Defendant answer within 60 days after being served.

TILTON & TILTON LLP

/s/: Ryne C. Bazan

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ATTORNEYS FOR PLAINTIFF

PLEASE SERVE DEFENDANTS AS FOLLOWS:

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